

BEFORE THE FEDERAL MARITIME COMMISSION

Francis Sheka Kanu
6042 The Plaza
Charlotte, NC 28215 (francesgats@bellsouth.net)

Complainant,

v.

Ejike Dickson Eze
dba Ejike International Trade Limited
(A North Carolina Limited Liability Company)
1000 Montana Drive
Charlotte, NC 28216

Sealines International and Seamates International, Inc.
(A North Carolina Corporation)
301 E Main St, Suite 1-B
Cherryville, NC 28021

MAERSK
9300 Arrowpoint Blvd
Charlotte, NC 28273

Respondents

Docket No. 25-05</

(b) The Second respondents (Sealines International and Seamates International, Inc.) are Corporations duly incorporated in North Carolina USA having their principal place of business at 301 E Main St, Suite 1-B Cherryville, NC 28021.

(c) The Third respondent (MAERSK) is a Corporation having its principal office located at 9300 Arrowpoint Blvd. Charlotte, NC 28273.

(d) The Second and Third respondents are both freight forwarding companies engaged in the business of ocean freight forwarder.

III. The jurisdiction of the Federal Maritime Commission pursuant to this complaint is derived from 46 USC Section 1701 et seq., and 46 CFR Chap IV, Section 501 2(a).

At all times material to this complaint, Ejike International Trade Ltd has acted as Francis Sheka Kanu's ocean freight forwarder for the shipment of container number: **PONU7794870** with original booking number: **214183445/MRK43541764** which purportedly departed 1000 Montana Drive on the 5th of June, 2021 en route to Queen Elizabeth Port, Sierra Leone with the estimated date of arrival to be on the 25th August, 2021.

IV. The following occurred by and between Complainant and Respondents:

A. On or about the 5th day of June, 2021 Mr. Francis Sheka Kanu (Shipper) entered

B. A 40-foot container, with number **PONU7794870** having the following contents (a) Building materials, (b) Household items, (c) A 2004 Range Rover SUV with **Vin #: SALME11444A145870** (copy of title is herewith attached) will be shipped to Queen Elizabeth Port in Sierra Leone, **for a set price of \$4,134** by the shipper Ejike Dickson Eze dba, Ejike International Trade Ltd. (receipt of payment is herewith attached).

C. The said Container was estimated to depart from Charlotte, NC on June 5th, 2021 and arrive at Queen Elizabeth Port in Sierra Leone on August 25th, 2021 certain.

D. The shipper (Francis Sheka Kanu) par this contract is responsible for ensuring the contents of the Container meets all applicable laws/regulations, and must provide accurate documentation and ensure all duties and taxes at the destination are paid (receipt of payment to Sierra Leone Customs herewith attached).

E. The shipping agent (Ejike Dickson Eze dba Ejike International Trade Ltd.) for himself and on behalf of Seamates International, Sealines International Inc., and MAERSK is responsible for coordinating, and safe transportation of the Container. The shipping agent is further responsible for ensuring that the Container is shipped and delivered according to the specified schedule.

F. Whereas, the Container in issue was originally booked by the shipping company, MAERSK through her agents, Seamates International, Sealines International Inc., and Ejike Dickson Eze dba Ejike International Trade Ltd., under booking number: **214183445**/ Container number: **MRKU**

G. Having waited to no avail for the shippers Container to arrive at the destination in Sierra Leone, the shipper (Francis Sheka Kanu) approached the shipping agent who informed him that there was an issue that held the Container down. The shipping agent, informed the shipper that Mr. William Head (Customer Experience Business Partner, MAERSK, 9300 Arrowpoint Blvd., Charlotte NC 28273) through his email (herewith attached) to Lynne Nolen (Seamates International, Sealines International Inc., 301 E Main Street, Cherryville NC 28021) confirmed that the shipper's Container was routed to different booking number: **212377801** as a result of the **SI** that was submitted on August 29, 2021.

H. It becomes apparent and obvious to the shipper at this point, that there has been a breach/negligence on the part of the shipping agent/shipping companies with respect to this contract. The shipper at this point was becoming uncomfortable with the unfolding circumstances and probed to know more about the situation and the way out of this situation, when the shipping agent asked him to exercise patience as according to him, "William Head was on top of the situation and has confirmed that, the Container reached Pointe Noire in Congo on November 18, 2021." This was contrary to the original agreed destination of Queen Elizabeth Port in Sierra Leone.

I. The shipping agent assured the shipper that the situation is being looked into by other concerned parties to make sure that the Container is being re-exported to Sierra Leone citing the email that Lynne Nolen (Sealines International and Seamates International Inc., 301 E Main Street Suite 1-B Cherryville, NC 28021) confirming that "Container with booking number: **212377801** departed on September 09, 2021, and gated in Pointe Noire, Congo on November 18, 2021 (emails herewith attached) and demanded to know the reason why it took three months for the Container

J. It should be instructive here, that on or about July 12, 2021, MAERSK in Freetown, Sierra Leone through her Customer Service Representative, Sai Guru Prasad J informed the Shippers clearing agent in Freetown, Sierra Leone (Amadu Jalloh) that a Container with Bill of Lading Number **212399527** has arrived, and that he has notified appropriate destinations for cargo release (Copy of the email and supporting documents herewith attached).

K. The Shipper clearing agent, relying on the aforesaid, therefore requested for an invoice of the Delivery Order and subsequently made payments in terms of the Delivery Order (Copy of payment receipt is herewith attached). He thereafter proceeded to Queen Elizabeth Port to receive the Container, just to be informed that the Container has been routed to Pointe Noire, Congo.

L. The Shipping Agent with the object of allaying the fear and concern of the Shipper, appointed a clearing agent in the person of Macky Kilumbu who contacted Lynne Nolen and sought to find a lasting solution to this issue, only for Lynne Nolen through her email dated June 09, 2022 and said, "The Container is in Pointe Noire, Congo. I have been trying to discuss the matter with MEARSK Line to see what happened. MEARSK Line will not offer any help, except to give me an email for the re-export of the Container to Freetown, Sierra Leone." (email herewith attached).

M. On the basis of this disclosure, Macky Kilumbu therefore convened a meeting between the Shipper, the Shipping Agent and Lynne Nolen where it was decided and agreed that an agent residing in Pointe Noire, Congo will be hired to facilitate the logistics of ensuring that the Container gets re-exported to Freetown, Sierra Leone with Sealines International and Seamates International Inc., defraying the cost.

N. Despite the understanding that Sealines International/Seamates International Inc., would defray the cost of re-exporting the Container to Freetown, Sierra Leone, the Shipping Agent went ahead and demanded and received additional Two Thousand Dollars (**\$2,000.00**) from the Shipper to facilitate the re-exporting of the Container to Freetown, Sierra Leone, the receipt of payment is herewith attached.

O. Irrespective of the representation made to Francis Sheka Kanu (the Shipper), Ejike Dickson Eze dba Ejike International Trade Ltd., Sealines International/Seamates International Inc., and MAERSK was not able to re-export the Container to Freetown, Sierra Leone up till now.

P. That by reason of the facts stated in the forgoing paragraphs, Complainant has been (and is being) subject to injury as a direct result of the violations by Respondents of the following:

1. 46 U.S.C. § 41102(c) – Failure to Establish and Enforce Just and Reasonable Practices

Under 46 U.S.C. § 41102(c), "A common carrier, ocean transportation intermediary, or marine terminal operator may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property."

(a). Failure to Deliver Cargo to the Contracted Destination: The complaint alleges that the container was misrouted to Pointe Noire, Congo, rather than Queen Elizabeth Port, Sierra Leone, as originally contracted. This indicates a failure by the shipping agent and carriers to establish and observe reasonable practices for delivering the cargo per the shipping contract.

(b). Lack of Transparency and Coordination: The shipping agent (Ejike International Trade Ltd.) and freight forwarders (Seamates International, Sealines International Inc., and MAERSK) failed to provide adequate tracking, updates, or corrective action to ensure the cargo reached its intended destination.

(c). Failure to Re-Export the Cargo: Despite agreements and additional payments made by the Complainant, the cargo has still not been re-exported to Sierra Leone. This reflects a failure in establishing and enforcing reasonable practices to ensure proper transportation and delivery.

2. 46 U.S.C. § 41104(a)(4) – Unreasonable Refusal to Deal or Negotiate

Under 46 U.S.C. § 41104(a)(4), a common carrier may not "engage in unfair or unjustly discriminatory practices in the matter of rates or charges with respect to any person."

(a). Demanding Additional Payment for Re-Export: The shipping agent and carriers required the Complainant to pay an additional \$2,000 for re-exporting the container to Freetown, Sierra Leone, despite prior agreements that Sealines International/Seamates International Inc. would cover the cost. This unjustified charge may be considered an unreasonable and unfair demand.

(b). Lack of Corrective Action despite Payment: Even after additional payments were made, no corrective action was taken to ensure the container reached its contracted destination. This suggests an unfair refusal to deal or negotiate in good faith.

3. 46 U.S.C. § 41102(a) – Unfair or Unreasonable Business Practices

Under 46 U.S.C. § 41102(a), "A common carrier, ocean transportation intermediary, or marine terminal operator may not engage in any unfair or unreasonable practice in the handling of property."

(a). Repeated Failures and False Representations: The Respondents misrepresented the status of the container, giving the Complainant assurances that the issue was being resolved while failing to take corrective actions.

(b). Failure to Meet Contractual Obligations: The Respondents failed to ensure proper handling, routing, and delivery of the container, which directly harmed the Complainant's business and property interests.

(c). Financial Injury and Cargo Loss: Due to the Respondents' actions, the Complainant has suffered financial loss, delays, and possible damage or loss of property, violating the requirement to conduct fair and reasonable business practices in handling shipments.

4. 46 U. S. C Section 1710(a) - Filing of complaints

"Any person may file with the Commission a Sworn complaint alleging a violation of this chapter, other than section 1705(g) of this Appendix, and may seek reparation for any injury caused to the complainant by that violation"

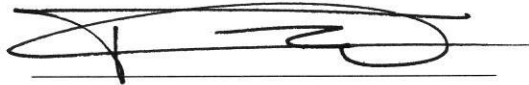
is applicable to this matter.

Prayer for Relief

VII WHEREFORE, Complainant prays that Respondents be required to answer the charges herein, if possible an order be made commanding the said Respondents to cease and desist from any act that will further cause more damage to the Complainant, to establish and put in force such practices as the Commission may determine to be lawful and reasonable, to re-export the said container to port Elizabeth, Freetown, Sierra Leon per the initial contract, and Eighty Thousand U.S Dollars (\$80,000.00), as reparation for cost of goods and shipping and any cost or such other cost the Commission may determine to be proper as an award of reparation, and that such other and further orders be made as the Commission determines to be proper in the circumstances.

Dated at Charlotte, North Carolina, this 8th day of MARCH, 2025.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Francis Sheka Kanu', written over a horizontal line.

Francis Sheka Kanu (SHIPPER)
6042 The Plaza
Charlotte, NC 28215

VERIFICATION

State of North Carolina)

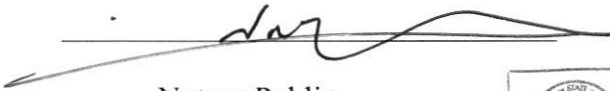
) ss

County of Mecklenburg)

FRANCIS SHEKA KANU, being first duly sworn on oath, deposes and says that he is the Complainant and is the person who signed the foregoing Complaint; that he has read the Complaint and that the facts stated therein, upon information received from others, affiant believes to be true.

SUBSCIBED and SWORN to

Before me this 8th day of March, 25



Notary Public

